

1.	22CV0981	KOHLSTEDT vs. WALMART, INC
Continue Trial Date/Motion to Compel		

Motion to Compel Discovery

Defendant requests the Court to issue an Order to compel Plaintiff to submit to discovery at an examination scheduled for April 15, 2026. The trial in this matter is scheduled on April 21, 2026. The discovery cutoff date is 30 days prior to that date, on March 20, 2026. Code of Civil Procedure § 2024.020. Defendant moves to continue the trial date but even if the Court were to grant that motion, “a continuance or postponement of the trial date does not operate to reopen discovery proceedings” except as provided in Code of Civil Procedure § 2024.050.

Defendant’s motion does not expressly request an extension of time for discovery, nor does it reference Section 2024.050. Even if a discovery extension could be considered to be implicit in Defendant’s motion to continue the trial date, Plaintiff objects that defendant never conducted mandatory meet and confer efforts as required by Code of Civil Procedure § 2024.050(a). Declaration of Daniel Del Rio, dated March 9, 2026, para. 19.

Accordingly, the Court lacks statutory authority to compel discovery at a time that discovery has ready been cut off and no proper motion is before it to extend the discovery deadline.

This decision is not based on the merits of the motion. The Court does not agree with Plaintiff’s interpretation of the holding in Randy’s Trucking, Inc. v. Superior Ct., 91 Cal. App. 5th 818, (2023), which very clearly did not *require* the raw data and audio recording of a neuropsychologist’s exam to be shared with a Plaintiff’s lawyer. Rather, it held that such a decision was within the trial court’s discretion and subject to review based on the information that the trial court had before it at the time that the decision was made. Nor does the Court agree that Defendant’s motion is procedurally defective. The Court further observes that if the Defendant’s motion was filed late, the delay was largely due to Plaintiff’s prolonged insistence on adherence to its interpretation of “the Randy’s Trucking standard”. Nevertheless, the Court is bound by the statutes governing the timing of discovery to deny the motion to compel.

Motion to Continue Trial Date

California Rules of Court, Rule 3.1332 provides that each request for a continuance must be considered on its own merits, and must be supported by a showing of good cause. The Rule lists a variety of circumstances and relevant factors that the Court must consider in ruling on a continuance motion.

March 20, 2026
Dept. 9
Tentative Rulings

The motion is supported by the Declaration of Chloe Sanchez, dated February 24, 2026, citing conflicting trial dates of one co-lead counsel, a leave of absence by the other co-lead counsel, and the fact that counsel was informed by two expert witnesses that they would not be available for the currently scheduled trial dates. In apparent response to Plaintiff's objection that the Sanchez Declaration constituted inadmissible hearsay as to the availability of expert witnesses, Defendant also filed the Declarations of Steven Lee, M.D., and Mark Borsody, M.D., Defendant's expert witnesses, that they would be unavailable for the trial.

Plaintiff's opposition cites the facts that there have already been two continuances, one at each of the two parties' requests. Further, that the requested continuance is for a period of seven months, and that Defendant should be able to reassign counsel and/or preserve expert testimony as an alternative to continuance.

On balance, the Court finds that there is good cause to continue the trial date.

TENTATIVE RULING #1: DEFENDANT'S MOTION TO COMPEL DISCOVERY IS DENIED. DEFENDANT'S MOTION TO CONTINUE THE TRIAL DATE IS GRANTED. THE PARTIES ARE ORDERED TO APPEAR AT 8:30 A.M. ON FRIDAY, MARCH 20, 2026, IN DEPARTMENT NINE TO SET A NEW TRIAL DATE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.